

Bill No. 85 of 1976

**THE CONSTITUTION (FORTY-THIRD AMENDMENT)
BILL, 1976**

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BILL

further to amend the Constitution of India.

BE it enacted by Parliament in the Twenty-seventh Year of the Republic of India as follows:—

Short
title.

1. This Act may be called the Constitution (Forty-third Amendment) Act, 1976.

Amend-
ment of
article
316.

- 5 2. In article 316 of the Constitution, in clause (2), for the words "sixty years", the words "sixty-two years" shall be substituted.

STATEMENT OF OBJECTS AND REASONS

Article 316(2) of the Constitution provides that the Chairman and Members of a State Public Service Commission or Joint Commission shall retire at 60 or hold office for a term of six years from the date on which they enter service, whichever is earlier. This was the position when the Constitution came into force. Subsequently, while the age of retirement of the High Court Judges was raised to 62, that of the Chairman and the Members of the State Public Service Commissions remained unchanged.

The same article provides that one-half of the members of every Public Service Commission shall be employees of the Government of India or the Government of a State. The age of retirement of Government employees was 55 originally but was later raised to 58 in the case of All-India Services, Central Government servants and the Government servants of several States. Membership of the Commission is no attraction, therefore, to them, as they will have only two years to serve on the Commission which position is not desirable from the point of view of the efficient functioning of the Commission.

Academics like University Professors are eligible for appointment to the State Public Service Commissions. The age of retirement of University Professors has been recently raised to 60. It will not be attractive for these academicians to serve on a Public Service Commission if the age of retirement remains sixty. The Chairman/Members of a State Public Service Commission are forbidden to serve under the Government of India or a State Government after retirement. Consequently, no eminent academician will be eager to accept appointment on the Commission unless the age of retirement is raised to 62.

The proposal is to raise the age of retirement of the Chairman and Members of the State Public Service Commissions to 62. The Bill seeks to give effect to this proposal.

NEW DELHI;
The 18th August, 1976.

OM MEHTA.

ANNEXURE

EXTRACT FROM THE CONSTITUTION OF INDIA

316. (1) * * *

Appoint-
ment and
term of
office
of
members.

(2) A member of a Public Service Commission shall hold office for a term of six years from the date on which he enters upon his office or until he attains, in the case of the Union Commission, the age of sixty-five years, and in the case of a State Commission or a Joint Commission, the age of sixty years, whichever is earlier:

Provided that—

(a) a member of a Public Service Commission may, by writing under his hand addressed, in the case of the Union Commission or a Joint Commission, to the President, and in the case of a State Commission, to the Governor of the State, resign his office;

(b) a member of a Public Service Commission may be removed from his office in the manner provided in clause (1) or clause (3) of article 317.

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further to amend the Constitution of India.

(Shri Om Mehta, Minister of
State in the Ministry of
Home Affairs, Department
of Personnel and Administra-
tive Reforms and Depart-
ment of Parliamentary
Affairs).